

1 ENGROSSED HOUSE
2 BILL NO. 3266

By: George of the House

3 and

4 Hines of the Senate

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6
7 An Act relating to reckless driving; amending
8 Section 15, Chapter 366, O.S.L. 2024 (21 O.S. Supp.
9 2025, Section 200), which relates to Class D2 felony
10 offenses; adding certain crime to list of D2 felony
11 offenses; amending 47 O.S. 2021, Section 11-901,
12 which relates to reckless driving; making certain
13 acts unlawful; providing penalties; and providing an
14 effective date.

15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. AMENDATORY Section 15, Chapter 366, O.S.L.
17 2024 (21 O.S. Supp. 2025, Section 200), is amended to read as
18 follows:

19 Section 200. A. Upon the effective date of this act, Class D2
20 shall include the following criminal offenses:

21 1. Attempt to escape from penitentiary, as provided for in
22 Section 434 of ~~Title 21 of the Oklahoma Statutes~~ this title;

23 2. Attempt to escape from prison, not a penitentiary, as
24 provided for in Section 436 of ~~Title 21 of the Oklahoma Statutes~~
this title;

1 3. Escape from arrest or detention for a felony, as provided
2 for in subsection C of Section 444 of ~~Title 21 of the Oklahoma~~
3 ~~Statutes~~ this title;

4 4. Aggravated assault and battery upon medical care provider,
5 as provided for in Section 650.5 of ~~Title 21 of the Oklahoma~~
6 ~~Statutes~~ this title;

7 5. Omitting to provide for a child, as provided for in Section
8 852 of ~~Title 21 of the Oklahoma Statutes~~ this title;

9 6. Harboring an endangered runaway child, second or subsequent
10 offense, as provided for in Section 856.2 of ~~Title 21 of the~~
11 ~~Oklahoma Statutes~~ this title;

12 7. Discharging a stun gun, tear gas, mace, or other agent
13 against officer, as provided for in Section 1272.3 of ~~Title 21 of~~
14 ~~the Oklahoma Statutes~~ this title;

15 8. Possession of sawed-off shotgun, as provided for in Section
16 1289.18 of ~~Title 21 of the Oklahoma Statutes~~ this title;

17 9. Transmit threatening letter, as provided for in Section 1304
18 of ~~Title 21 of the Oklahoma Statutes~~ this title;

19 10. Reckless driving that results in a collision, as provided
20 for in subsection D of Section 11-901 of Title 47 of the Oklahoma
21 Statutes;

22 11. Abortion without license, as provided for in Section 1-731
23 of Title 63 of the Oklahoma Statutes;

1 ~~11.~~ 12. Abortion after first trimester, as provided for in
2 Section 1-731 of Title 63 of the Oklahoma Statutes;
3 ~~12.~~ 13. Self-induced abortion, as provided for in Section 1-733
4 of Title 63 of the Oklahoma Statutes;
5 ~~13.~~ 14. Violate Oklahoma Unborn Child Protection from
6 Dismemberment Abortion Act, as provided for in Section 1-737.9 of
7 Title 63 of the Oklahoma Statutes;
8 ~~14.~~ 15. Violation of Unborn Child Pain Awareness/Prevention
9 Act, as provided for in Section 1-738.14 of Title 63 of the Oklahoma
10 Statutes;
11 ~~15.~~ 16. Knowingly perform abortion on unemancipated minor, as
12 provided for in Section 1-740.4b of Title 63 of the Oklahoma
13 Statutes;
14 ~~16.~~ 17. Make fraudulent statement to obtain abortion for a
15 minor, as provided for in Section 1-740.4b of Title 63 of the
16 Oklahoma Statutes;
17 ~~17.~~ 18. Violation of the Pain-Capable Unborn Child Protection
18 Act, as provided for in Section 1-745.7 of Title 63 of the Oklahoma
19 Statutes;
20 ~~18.~~ 19. Violation of the Heartbeat Informed Consent Act, as
21 provided for in Section 1-746.7 of Title 63 of the Oklahoma
22 Statutes;
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1 ~~19.~~ 20. Abortion on minor less than fourteen (14) years of age
2 or failure to submit tissue, as provided for in Section 1-749 of
3 Title 63 of the Oklahoma Statutes;

4 ~~20.~~ 21. Distribution of imitation controlled substance, second
5 offense, as provided for in Section 2-401 of Title 63 of the
6 Oklahoma Statutes; and

7 ~~21.~~ 22. Assist another in purchase of pseudoephedrine products,
8 second or subsequent offense, as provided for in Section 2-701 of
9 Title 63 of the Oklahoma Statutes.

10 B. Any person convicted of a Class D2 criminal offense set
11 forth in this section shall be punished by imprisonment in the
12 custody of the Department of Corrections for a term of not more than
13 two (2) years and shall serve at least twenty percent (20%) of the
14 sentence imposed before release from custody.

15 C. 1. Every person who, having been previously convicted of
16 one or two Class C or Class D criminal offenses, commits a Class D2
17 criminal offense shall, upon conviction, be punished by imprisonment
18 in the custody of the Department of Corrections for a term of not
19 less than one (1) year nor more than five (5) years and shall serve
20 at least twenty percent (20%) of the sentence imposed before release
21 from custody including release to electronic monitoring pursuant to
22 Section 510.9 of Title 57 of the Oklahoma Statutes.

23 2. Every person who, having been previously convicted of three
24 Class C or Class D criminal offenses, or one or more Class Y, Class

1 A, or Class B criminal offenses, commits a Class D2 criminal offense
2 shall, upon conviction, be punished by imprisonment in the custody
3 of the Department of Corrections for a term of not less than one (1)
4 year nor more than ten (10) years and shall serve at least thirty
5 percent (30%) of the sentence imposed before release from custody
6 including release to electronic monitoring pursuant to Section 510.9
7 of Title 57 of the Oklahoma Statutes.

8 D. Unless specifically exempted pursuant to subsection E of
9 this section, Section 51.1 of Title 21 of the Oklahoma Statutes
10 shall not apply to Class D2 criminal offenses.

11 E. 1. The criminal offenses listed in paragraphs 7, 10, 11,
12 12, 13, 14, 15, 16, 17, 18, and 19 of subsection A of this section
13 shall be exempt from the penalty provisions provided for in
14 subsections B and C of this section. Persons convicted of the
15 criminal offenses provided for in paragraphs 7, ~~10~~, 11, 12, 13, 14,
16 15, 16, 17, 18, 19 and ~~19~~ 20 of subsection A of this section shall
17 be punished in accordance with the corresponding penalties provided
18 for in the Oklahoma Statutes including Section 51.1 of Title 21 of
19 the Oklahoma Statutes.

20 2. The criminal offense listed in paragraphs 2, 4, 5, and 6 of
21 subsection A of this section shall be exempt from the penalty
22 provisions provided for subsection B of this section. Persons
23 convicted of the criminal offenses provided for in paragraphs 2, 4,
24 5, and 6 of subsection A of this section shall be punished in

1 accordance with the corresponding penalties provided for in the
2 Oklahoma Statutes including Section 51.1 of Title 21 of the Oklahoma
3 Statutes. The provisions of subsection C of this section still
4 applies to the criminal offenses listed in paragraphs 2, 4, 5, and 6
5 of subsection A of this section.

6 F. All Class D2 criminal offenses shall be punishable by the
7 corresponding fines as provided for in the Oklahoma Statutes.

8 SECTION 2. AMENDATORY 47 O.S. 2021, Section 11-901, is
9 amended to read as follows:

10 Section 11-901. A. It shall be deemed reckless driving for any
11 person to drive a motor vehicle in a careless or wanton manner
12 without regard for the safety of persons or property or in violation
13 of the conditions outlined in Section 11-801 of this title.

14 B. Every person convicted of reckless driving shall be punished
15 upon a first conviction by imprisonment for a period of not less
16 than five (5) days nor more than ninety (90) days, or by a fine of
17 not less than One Hundred Dollars (\$100.00) nor more than Five
18 Hundred Dollars (\$500.00), or by both such fine and imprisonment; on
19 a second or subsequent conviction, punishment shall be imprisonment
20 for not less than ten (10) days nor more than six (6) months, or by
21 a fine of not less than One Hundred Fifty Dollars (\$150.00) nor more
22 than One Thousand Dollars (\$1,000.00), or by both such fine and
23 imprisonment.

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1 C. Every person convicted of reckless driving involving any
2 motor vehicle speed contest or motor vehicle race on any street or
3 highway shall, upon a first conviction, be punished by imprisonment
4 for not less than five (5) days nor more than six (6) months, or by
5 a fine of not less than Two Hundred Dollars (\$200.00) nor more than
6 One Thousand Dollars (\$1,000.00), or by both such fine and
7 imprisonment. Every person convicted of a second or subsequent
8 conviction shall be punished by imprisonment for not less than
9 thirty (30) days nor more than six (6) months, or by a fine of not
10 less than One Thousand Dollars (\$1,000.00), or by both such fine and
11 imprisonment.

12 D. Every person who is involved in a collision while driving or
13 operating a motor vehicle within this state and who is in violation
14 of the provisions of subsection A or C of this section shall, upon
15 conviction, be guilty of a Class D2 felony offense punishable by
16 imprisonment as provided for in subsections B through F of Section
17 200 of Title 21 of the Oklahoma Statutes.

18 SECTION 3. This act shall become effective November 1, 2026.
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1 Passed the House of Representatives the 9th day of March, 2026.

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3 _____
4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the ____ day of _____, 2026.

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9 Presiding Officer of the Senate